3817

# Executive Order

## AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other Purposes", approved October 6th, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, without public or other advertisement, at such time and place as to him, or to his authorized agent, may seem advisable, that certain property hereinafter described, now being held and administered by him as such Alien Property Custodian and heretofore upon requirement and demand, conveyed, transferred, assigned and delivered to him as the property of the following person, namely: Paul Niedieck, which said person he did, after investigation, determine to be an enemy within the purview of said Act as amended, which property is described as follows, to wit:—

1,000 shares of the common capital stock of The Latouche Copper Mining Company, a corporation having its principal place of business in the City of New York, State of New York.

My reasons for the foregoing determination, order, rule and regulation are:

(*a*) That the book value today is $42.74 per share, less liquidation costs. The assets consist of an undeveloped mine in Alaska requiring, at the most optimistic estimate, three years of development and large money outlay before the possibility of establishing a paying mine.

(*b*) That the offer made of $30. per share will provide funds for the Trust and make a more satisfactory showing that the Trust's interest is safeguarded by the Custodian than would a continuance of the uncertain stock interests in the development work.

(*c*) The willingness and desire of the enemy to sell as is noted in certain original communications in the year 1915.

(*d*) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience which should be avoided.

**WARREN G HARDING**

THE WHITE HOUSE,
*April 9, 1923.*

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